

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: September 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV445868	Arthur Seals vs LifeMoves	Hearing: Demurrer Defendant's demurrer is unopposed. Failure to file opposition may be treated by the Court as a concession by the Plaintiff that the demurrer has merit. (See <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410; <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The <i>Favela</i> action (24CV436819) is the earlier-filed action and is brought individually and on behalf of other aggrieved employees. Plaintiff here falls within the definition of "aggrieved employees" and also pursues individual and representative relief in the instant case. Additionally, the issues appear to be substantially the same. (See <i>Leadford v. Leadford</i> (1992) 6 Cal.App.4th 571, 574.) The demurrer is SUSTAINED, and this action shall be abated and stayed pending disposition of the earlier-filed action. The matter will be scheduled for a Status Conference re: Stay on July 17, 2026, at 10:00 a.m. in Department 13. Defendant shall prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 2	24CV455071	Deanna Thompson vs FCA US, LLC. et al	Hearing: Demurrer Ctrl Click (or scroll down) on Line 2 for tentative ruling.
LINE 3	24CV453913	AMERICAN EXPRESS NATIONAL BANK vs ADAM CHICK et al	Motion: Admissions Deemed Admitted Plaintiff's unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.). Those matters specified in Plaintiff's Request for Admissions (Set One) are deemed admitted and/or documents deemed genuine. Plaintiff's request for sanctions is GRANTED. Defendant shall pay to Plaintiff \$360.00 within 30 days of the date of service of the final order. Plaintiff to prepare the final order within 10 days of the date of the hearing.
LINE 4	24CV451145	Jeremy Taylor vs Jordan Mendelson et al	Motion for Order Permitting Alternate Service Ctrl Click (or scroll down) on Line 4 for tentative ruling.